IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
COURT-II

CP(CAA)/35(AHM)2022
WITH
CA(CAA)/02(AHM)2022

[Under Section 230-232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016]

IN THE MATTER OF SCHEME OF ARRANGEMENT
IN THE NATURE OF DEMERGER

OF

ERIS HEALTHCARE PRIVATE LIMITED
(Petitioner Company No. 1/Demerging Company)

AND

APRICA HEALTHCARE LIMITED
(Petitioner Company No. 2/Resulting Company)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Pronounced on: 23.12.2022

CORAM:
DR. DEEPTI MUKESH
HON'BLE MEMBER (Judicial)
MR. AJAI DAS MEHROTRA
HON'BLE MEMBER (Technical)

MEMO OF PARTIES

ERIS HEALTHCAR PRIVATE LIMITED
CIN: U24211GJ2013PTC113419
R/a: 401-404, 4th Floor, Shivarath Ambit,
Plot No. 142/2, Ramdas Road, Off. SBR,
Nr. Swati Bunglow, Bodakdev,
Ahmedabad-380054

…Petitioner Company No. 1/
Demerging Company

AND

APRICA HEALTHCARE LIMITED
CIN: U24232GJ2011PLC112374
R/a: B-4, 4th /F-04, Safal Profitair,
Nr. Krishna Bunglow, 100ft. Road,
Prahaladnagar, Road, Vejalpur,
Ahmedabad-380015

…Petitioner Company No.2/
Resulting Company

For Petitioner **:** Mr. Ashish Shah, PCS
For RD **:** Mr. Liladhar Sharma, Assistant Director
For Income Tax Department: Ms. Pankit Shah, Adv.

ORDER

1. This joint petition has been filed by the Petitioner Companies above named under Sections 230 and 232 of the Companies Act, 2013 ('the Act') read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 for the purpose of the approval of the Scheme of Arrangement (‘Scheme’), for De-merger and Transfer of Acquired Business (‘Demerged Undertaking’) of Eris Healthcare

Limited ('Demerged Company') to Aprica Healthcare Limited ('Resulting Company') with effect from the appointed date as mentioned in the Scheme i.e. 01.04.2021 .

2. From the records, it is seen that the first motion application seeking directions for convening/ dispensing of the meeting of the Equity Shareholders, Secured Creditors and Unsecured Creditors was filed and vide order dated 18.04.2022, the convening of all the meetings of the shareholders and Unsecured Creditors of both Demerging Company and Resulting Company were dispensed with and since the Demerging Company and Resulting Companies have no Secured Creditors, necessity of convening meeting were obviated.

3. Thereafter this 2nd motion petition was filed and vide order dated 31.05.2022 the petition was admitted, issuing notices to the concerned statutory authorities and directing publication in the newspapers viz "Financial Express" in English and Gujarati Edition having circulation in Gujarat. Both Petitioner Companies have filed respective compliance affidavits.

4. The Regional Director, North Western Region, MCA has filed common report on 07.07.2022 along with the report of RoC, Ahmedabad seeking following directions:

   i) The Petitioner Companies to undertake the compliance of Section 2 (19AA) of the Income Tax Act, since this is a scheme of demerger.
   ii) As per clause 12.1 of the Scheme, the authorised share capital of the Demerged Company shall stand reduced from Rs. 5,00,00,000/- to Rs. 25,00,000/- by transferring authorized share capital of Rs. 4,75,00,000/- to resulting company. There

is no provision in the Companies Act to reduce the authorised capital of one company and transfer the same to some other company. Therefore, the Petitioner Companies not be allowed for such transfer of authorised capital.

iii) The Resulting Company to comply with provisions of Section 61 of the Companies Act, 2013 as to payment of stamp duty, registration fees etc.

iv) The sequence of sub-clause mentioned at clause 13 of the Scheme are not in logical manner. Thus, the petitioner companies be directed to correct the sequence.

5. The Petitioner Companies have filed a reply on 19.07.2022, to the observations of Regional Director, RoC and have given undertakings as under:

i) The Petitioner Companies shall comply with the provisions of Section 2 (19AA) of the Income Tax Act.

ii) The petitioner company undertakes that in case if it is required to increase the authorized share capital, the same would be in compliance with the provisions of the Companies Act and also undertake to pay required registration fees, stamp duty and file required e- form with Registrar of Companies.

iii) That due to typographical error clause 13.1, 13.2 and 13.3 are mentioned as clause 12.1, 12.2 and 12.3. The same is purely typographical error and same would be corrected.

6. The Petitioner Companies thereafter filed an affidavit on 07.11.2022 and placed on record the resolution passed by Board of Directors of Petitioner Companies in their meeting held on 01.11.2022, amending the Scheme of Arrangement by deleting clause relating to

reorganization of the Share Capital. Thus, there will be no change in the Authorised Capital of Demerged Company. Copy of board resolutions and amended Scheme are placed on record. The Petitioner Companies have also placed on record the consent affidavits of equity shareholder and unsecured creditors of both the companies with respect to said modification in the Scheme on 18.11.2022.

7. Assistant Director appearing for office of Regional Director, MCA stated that in view of submissions made by the petitioner companies, his office has no objection to the approval of the Scheme as recorded in daily order dated 13.12.2022.

8. The Income Tax Department has filed its report. The Ld. Counsel for the Income Tax Department stated that they do not have any objection to the approval of the Scheme, as recorded in our daily order dated 23.11.2022. The relevant extract of order dated 23.11.2022 is reproduced below:

> *"Learned counsel for the Income Tax Department states that with respect to transferor company they do not have any objection. With respect to transferee company they already have filed their no objection."*

9. In compliance with the proviso to sub-section (7) of Section 230 of the Companies Act, 2013, the Petitioner Companies have placed on record the Certificates of the Statutory Auditors confirming that the accounting treatment envisaged under the Scheme of Arrangement is in compliance with all the applicable accounting standards notified by the Central Government under Section 133 of the Companies Act, 2013.

10. The audited Financial Statements as on 31.03.2021 and provisional financial results for the nine months ending on 31.12.2021 of both the Petitioner Companies are annexed with the petition.

11. The copy of valuation report provided by registered valuer in accordance with the Companies Act, 2013 dated 15.11.2021 has been annexed.

12. It is stated that no proceedings or any investigations are pending against the Applicant Companies.

13. Heard submissions and perused documents placed on record. Considering the approval accorded by the members and creditors of the Petitioner Companies to the proposed Scheme, and the no objections filed / given by statutory authorities, it appears that the requirements of the provisions of Section 230 and 232 are satisfied by the Petitioner Companies. It seems that the proposed Scheme is bona fide and in the interest of the shareholders and creditors. Therefore, petition is allowed and the Scheme annexed with this order at Annexure-A, envisaging demerger of Demerged Undertaking of Eris Healthcare Limited, viz Demerging Company and merging of the same into Aprica Healthcare Limited, the Resulting Company is hereby sanctioned. It is declared that the said sanctioned scheme shall be binding on the petitioner companies and their shareholders, creditors and all concerned under the scheme.

14. Notwithstanding the above, if any deficiency is found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the Scheme will not come in the

way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the Petitioners.

15. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any manner granting exemption from payment of stamp duty, or taxes including income tax, GST etc., or any other charges or payment in accordance with law, or any kind of waiver in respect of any permission / compliance with any other requirement which may be specifically required under any law.

16. We further Order that:

    a) The Demerged undertaking of the Demerging Company, together with all its assets, rights and powers be transferred without further act or deed, to the Resulting Company and accordingly the same shall, pursuant to Section 232 of the Act, stand transferred to and vest in the Resulting Company for all the estate and interest of the Demerged Undertaking.

    b) All the properties, rights and powers of the Demerged undertaking of the Demerging Company as specified in the schedule of assets/properties annexed with this order as Annexure –B be transferred without further act or deed to the Resulting Company in accordance with the Scheme and accordingly, the same shall pursuant to Section 232 of the Act, stand transferred to and vest in the Resulting Company in accordance with the Scheme for all the estate and interest of the Demerged Undertaking.

    c) All licenses, permissions, permits, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights,

claims, liberties, special status, other benefits or privileges relating to the Demerged Undertaking shall stand transferred to and vest in the Resulting Company, without any further act or deed. The Resulting Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Resulting Company.

d) All the liabilities and obligations incurred by Demerging Company for the operations and to the extent of the Demerged Undertaking be transferred, without further act or deed, to the Resulting Company and accordingly the same shall pursuant to Sections 230 & 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Resulting Company.

e) All contracts, agreements, arrangements, bonds and all other instruments of whatsoever nature or description, of the Demerging Company in respect of and to the extent of the Demerged Undertaking, shall stand transferred to and vested in the Resulting Company.

f) All taxes paid or payable by the Demerged Undertaking, after the appointed date, un-availed credits and exemptions, benefit of carried forward losses and other statutory benefits pertaining to and to the extent of only Demerged undertaking, shall be available to and vest in the Resulting Company, if permissible under provisions of the concerned law.

g) All proceedings now pending by or against the Demerging Company in respect of Demerged Undertaking shall be continued by or against the Resulting Company.

h) All workers/employees in the service of the Demerged Undertaking of the Demerging Company shall be deemed to have become the workers/employees of the Resulting Company on date on which the scheme finally takes effect on the basis that their services shall be deemed to have been continuous and not having been interrupted by reasons of the said transfer and on term and conditions no less favourable than those on which they were / are engaged, as on the Effective Date.

i) Upon the coming into effect of the Scheme, and as proposed in the Scheme, the Resulting Company shall, without any further act or deed and without any further application, act, instrument or deed, issue and allot on a proportionate basis to the equity shareholders of Demerging Company, whose name is recorded in the register of members of Demerging Company as holding shares on the Record Date in following ratio:

1 (One) Equity Share of the face value of Rs 10 each, of Resulting Company for every 2 (Two) Equity shares of Rs. 10 credited as fully paid up held by such equity shareholders or their representative legal heirs, executors or administrators or, as the case may be, successors in Demerging Company before capital reduction.

j) The Petitioner Companies are directed to lodge a copy of this Order along with the approved Scheme, with the concerned Superintendent of Stamps, for adjudication of stamp duty, and pay requisite stamp duty payable, if any, within 60 days from the date of this Order.

k) Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

17. Company Petition is allowed and disposed of, in terms of above order.

-Sd-
AJAI DAS MEHROTRA,
MEMBER (TECHNICAL)

-Sd-
DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

Mansi J./LRA

ANNEXURE - A

SCHEME OF ARRANGEMENT IN THE NATURE OF DEMERGER

UNDER SECTIONS 230 TO 232 READ WITH SECTION 66 OF THE COMPANIES

ACT, 2013

BETWEEN

ERIS HEALTHCARE PRIVATE LIMITED
(DEMERGED COMPANY)

AND

APRICA HEALTHCARE LIMITED
(RESULTING COMPANY)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

For, Aprica Healthcare Limited

Authorized Signatory

NOTARY
YOGENDRA S. RAJPUT
Reg. No 5390/08
Ahmedabad

PREAMBLE

A. This scheme of Arrangement thereinafter referred to as the '**Scheme**', provides for the Demerger and vesting of the "Acquired Business" (as defined hereinafter) of **ERIS HEALTHCARE PRIVATE LIMITED (EHPL)** (Demerged Company) to **APRICA HEALTHCARE LIMITED (AHL)** (Resulting Company), pursuant to the provisions of Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 (**"the Act"**), read with the relevant Rules of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, including any statutory modification(s), amendment(s) or re-enactment(s) thereof for the time being in force.

B. **BACKGROUND OF COMPANIES**

1. **ERIS HEALTHCARE PRIVATE LIMITED** (Corporate Identification Number U24211GJ2013PTC113419) is a Private Limited Company and wholly owned Subsidiary Company of Eris Lifesciences Limited and was incorporated under the provisions of the Companies Act, 1956 having its registered office at 6th Floor, Commerce House - IV, Nr. Prahlad Nagar, 100ft. Road Ahmedabad GJ 380015 IN (herein after referred to as "**EHPL**" or "**Demerged Company**"). EHPL is engaged in the business of Pharmaceuticals.

EHPL was originally incorporated on 17/06/2013 under the provisions of the Companies Act, 1956 as Strides Actives Private Limited. Subsequently, the name of the Company was changed to Strides Healthcare Private Limited and fresh certification was obtained on 13/08/2014. Subsequently, the name of the company was changed to ERIS HEALTHCARE PRIVATE LIMITED and fresh certificate of incorporation was obtained on 18/05/2018.

The Hon'ble Regional Director (South Eastern Region) Hyderabad, vide his order dated 28-01-2020 has sanctioned a Petition for shifting of the Registered Office of the company from the State of Karnataka to the State of Gujarat. Accordingly, the company, upon registration of the said order, obtained a fresh certificate from the Registrar of Companies, Gujarat.

The Demerged Company has not changed its Object during the last five years. The Demerged Company has changed its name and shifted its Registered Office from the State of Karnataka to the State of Gujarat during the last five years.

For, Aprica Healthcare Limited

Authorized Signatory

2. **APRICA HEALTHCARE LIMITED** (Corporate Identification Number L24232GJ2011PLC112374) was originally incorporated as UTH Healthcare Private Limited on 03/03/2011 under the provisions of the Companies Act, 1956. It was converted into a public limited company on 13/09/2011. Subsequently the name of the Company was changed to Inncure UTH Healthcare Limited and fresh certification was obtained on 22/08/2013. Subsequently the name of the Company was changed to UTH Healthcare Limited and fresh certification was obtained on 30/10/2015. Subsequently the name of the Company was changed to Aprica Healthcare Limited and fresh certification was obtained on 26/04/2021. Its registered office Situated at B-A, 4TH/F-04, SafalProfitair, Nr. Krishna Bungalows 100 ft. Road, Prahladnagar, Vejalpur, Ahmedabad GJ 380015 IN (hereinafter referred to as **"AHL"** or **"Resulting Company"**). AHL is engaged in the business of Pharmaceuticals.

The Hon'ble Regional Director (WR) Maharashtra, vide his order dated 23-12-2019 has sanctioned a Petition for shifting of the Registered Office of the company from the State of Maharashtra to the State of Gujarat. Accordingly, the company, upon registration of the said order, obtained a fresh certificate from the Registrar of Companies, Gujarat.

The Resulting Company has not changed its Object during the last five years. The Resulting Company has changed its Name and Shifted its Registered Office from the State of Maharashtra to the State of Gujarat during the last five years.

C. RATIONALE OF THE SCHEME

The Demerged Company engaged in Various Business and owns the Following Two Business Undertakings.

- Acquired Business
- Generic Business

The Demerged Company would demerge Acquired Business (hereinafter referred to as "Demerged Undertaking") to the resulting Company and it would continue to run and operate the Generic Business (hereinafter referred to as the "Remaining Business Undertaking")

In order to achieve following objectives, the demerger of the Acquired Business of the Demerged Company with and into the Resulting Company is proposed:

- It will result into greater focus of the management for operation of the Acquired Business
- The demerger would enhance the value of all the stake holders.

For, Aprica Healthcare Limited

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- It will enable the Demerged Company to focus on Generic Business

D. OPERATION OF THE SCHEME

This is Scheme of Arrangement in the nature of Demerger. This Scheme is prepared in terms of the provisions of Sections 230 to 232 of the Companies Act, 2013 and is divided into Parts, which will be operationalized under the scheme of arrangement as described as under:

- Demerger of Acquired Business of EHPL and the vesting thereof in AHL in accordance with the terms of the Scheme and pursuant to the provision of section 230 to 232 of the Act read with Section 66 of the Act and other relevant provisions of the Act and in exchange of which, the equity shares will be issued by AHL to the equity shareholders of EHPL.

DEMERGER UNDER THE SCHEME:

This Scheme of Arrangement (hereinafter referred to as the "Scheme") provides for the transfer by way of demerger of the Acquired Business (as defined hereinafter) of the Demerged Company to the Resulting Company, and issue of equity shares by the Resulting Company to the shareholders of the Demerged Company pursuant to Sections 230 to 232 and other relevant provisions of the Act (as defined hereinafter) in the manner provided for in the Scheme. This Scheme has been drawn up to comply with the conditions as specified under Section 2 (19AA) of the Income-tax Act, 1961 such that:

(i) all the assets and properties of the Acquired Business (as defined hereinafter) being transferred by the Demerged Company immediately before the demerger, becomes the property of the Resulting Company by virtue of the demerger;

(ii) all the liabilities relatable to that Acquired Business being transferred by the Demerged Company immediately before the demerger, becomes the liabilities of the Resulting Company by virtue of the demerger;

(iii) the properties and the liabilities, if any, relatable to that Acquired Business being transferred by the Demerged Company are transferred to the Resulting Company at the values appearing in the books of account of the Demerged Company immediately before the demerger;

(iv) Equity shares are issued to the shareholders of the Demerged Company;

(v) Transfer of that Acquired Business will be on a going concern basis.

For, Aprica Healthcare Limited

The Scheme is divided into the following parts:

Part I :	Definitions
Part II:	Demerger of Acquired Business of EHPL and Vesting of Acquired Business with and into AHL
Part III:	Miscellaneous provisions and Conditionality of the Scheme

PART: I

GENERAL DEFINITIONS AND INTERPRETATION

1. DEFINITIONS

In this Scheme, unless inconsistent with the subject or context, the following expressions shall have the following meanings:

1.1. "**Act**" or "**The Act**" means the Companies Act, 2013 (to the extent of the sections thereof that have been brought into force) and the Companies Act, 1956 (to the extent of the sections thereof that have not been repealed);

1.2. "**Acquired Business**" means all the movable, immovableproperties (if any) and liabilities, of whatsoever nature and kind and wheresoever situated, of the Demerged Company, pertaining to its Acquired business Division, all the movable and immovable properties (if any), vehicles, investments, employees and other assets related to the Acquired Business. Without prejudice and limitation to the generality of the above, the Acquired Business, shall include:

(i) all assets, whether immovable or movable in nature pertaining to that Acquired Business, whether present or future or contingent, tangible or intangible, in possession or reversion, corporeal or incorporeal, actionable claims, earnest monies and sundry debtors, financial assets, outstanding loans and advances, recoverable in cash or in kind or for value to be received, provisions, receivables, funds, cash and bank balances and deposits including accrued interest thereto with Government, semi-Government, local and other authorities and bodies, banks, customers and other persons, the benefits of any bank guarantees, performance guarantees and tax related assets, including but not limited to service tax input credits, CENVAT credits, GST Credit, value added/sales tax/entry tax credits or set-offs and tax refunds;

For Apollo Healthcare Limited

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(ii) all permits, licences, permissions including municipal permissions, right of way, approvals, clearances, consents, benefits, registrations, rights, entitlements, credits, certificates,awards, sanctions, allotments, quotas, no objection certificates, exemptions, concessions, liberties and advantages (including those granted/issued/given by any governmental, statutory or regulatory or local or administrative bodies for the purpose of carrying on the business of that Acquired Business or in connection therewith) including those relating to privileges, powers, facilities of every kind and description of whatsoever nature and the benefits thereto that pertain exclusively to that Acquired Business;

(iii) all contracts, agreements, service orders, operation and maintenance contracts, memoranda of understanding, memoranda of Acquired Business, memoranda of agreements, memoranda of agreed points, minutes of meetings, bids, tenders, expression of interest, letter of intent, hire and purchase arrangements, lease/licence agreements, tenancy rights, agreements, equipment purchase agreements, agreement with customers, non-compete agreements purchase and other agreements with the supplier/manufacturer of goods,service providers, other arrangements, , deeds, bonds, schemes, concession agreements, insurance covers and claims, clearances and other instruments of whatsoever nature and description, whether written, oral or otherwise and all rights, title, interests, claims and benefits thereunder pertaining to that Acquired Business;

(iv) all applications, registrations, goodwill, licenses, trade names, trademarks, trade dress, service marks, copy rights, patents, domain names, designs, trade secrets, research and studies, technical knowhow, confidential information and all such rights of whatsoever description and nature that pertain exclusively to that Acquired Business;

(v) all books, records, files, papers, engineering and process information, software licenses (whether proprietary or otherwise), test reports, computer programmes, drawings, manuals, data, databases including databases for procurement, commercial and management, catalogues, quotations, sales and advertising materials, product registrations, dossiers, product master cards, lists of present and former customers and suppliers including service providers, other customer information, customer credit information, customer/supplier pricing information,

For, Aprica Healthcare Limited

Authorized Signatory

and all other books and records, whether in physical or electronic form that pertain to the Acquired Business;

(vi) all debts (whether secured or unsecured), borrowings including loans and borrowings from banks/financial institutions (to the extent of the said loans/borrowings that may be allocated/demarcated by the concerned banks/financial institutions to be transferred to the Resulting Company), obligations, duties and liabilities including contingent liabilities of the Demerged Company pertaining to and/or arising out of and/or relatable to the Acquired Business;

(vii) all employees of the Demerged Company employed/engaged in the Acquired Business; and

(viii) all legal or other proceedings of whatsoever nature that pertain to the Acquired Business of the Demerged Company

Explanation:

In case of any question that may arise as to whether any particular asset or liability and/or employee pertains or does not pertain to the Acquired Businessof the Demerged Company or whether it arises out of the activities or operations of the Acquired Businessof the Demerged Company, the same shall be decided by mutual agreement between Board of Directors of the Demerged Company and the Resulting Company.

For the purpose of identification, the properties connected to the Acquired Business Division are more particularly set out in **Schedule A** annexed hereof;

Without limitation and prejudice to the generality of foregoing, the details of assets and liabilities relating to Acquired Business Division as on Appointed Date are as more particularly set out in **Schedule B** annexed hereof;

1.3. "**Appointed Date**" means1st April, 2021 being the date and time with effect from which the Acquired Business of EHPL shall be demerged and vested with and into AHL in terms of provisions of this Scheme, upon sanction of the Scheme by the Tribunal and the Scheme coming into effect.

For, Aprica Healthcare Limited

Authorised Signatory

1.4. "**Applicable Law(s)**" means (a) all the applicable statutes, notification, enactments, act of legislature, listing agreement, bye-laws, rules, regulations, guidelines, rule of common law, policy, code, directives, ordinance, orders or other instructions having force of law enacted or issued by any Appropriate Authority including any statutory modifications or re-enactment thereof for the time being in force (b) administrative interpretations, writs, injunctions, directions, directives, judgments, arbitral awards, decree, orders, or governmental approvals of, or agreement with , any relevant authority, as may be in force from time to time;

1.5. "**Board**" or "**Board of Directors**" means the respective Board of Directors of EHPL and AHL and shall include a committee of such board duly constituted and authorized;

1.6. "**Business Day**" means any day, other than a Saturday and Sunday, on which banks are generally open for business in Gujarat, India;

1.7. "**Tribunal**" means the National Company Law Tribunal (NCLT) of Judicature of Gujarat at Ahmedabad having jurisdiction in relation to EHPL andAHL or such other forum or authority as may be vested with any of the powers of the NCLT in relation to the Scheme under the Act.

1.8. "**Companies**" the term collectively refers to EHPL and AHL, as the case may be.

1.9. "**Demerged Company**" means ERIS HEALTHCARE PRIVATE LIMITED ("**EHPL**"), a private limited Company incorporated under the provisions of the Companies Act, 1956 and having its registered office at 6th Floor, Commerce House - IV, Nr. Prahlad Nagar, 100ft. Road Ahmedabad Gujarat 380015 India.

1.10. "**Effective Date**" means the day on which a certified copy of the order of the NCLT sanctioning the scheme made under section 232 of the Companies Act, 2013, is filed with the Registrar of Companies, of State of Gujarat at Ahmedabad.

Reference in the Scheme to the date of "**Coming into effect of this Scheme**" or "**Upon the Scheme being effective**" shall mean the effective date.

For, Aprica Healthcare Limited

Authorized Signatory

1.11. "**Resulting Company**" means Aprica Healthcare Limited ("AHL"), a public limited Company incorporated under the provisions of the Companies Act, 1956 and having its registered office at B-A.4TH/T-04 ,Safal Profitair, Nr. Krishna Bungalows 100 ft. Road, Prahladnagar, Vejalpur Ahmedabad GJ 380015 IN;

1.12. "**Remaining Business**" means all the remaining businesses and/or divisions/Undertakings of the Demerged Company other than that Acquired Business being demerged under the scheme of arrangement;

1.13 "**Scheme**", "**the Scheme**" and "**this Scheme**", means the present Composite Scheme of Arrangement in its present form or with any modifications or amendments approved, imposed or directed by the NCLT.

2. INTERPRETATION

Terms and expressions which are used in this Scheme but not defined herein shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Act, The Income-tax Act, 1961, Code of Civil Procedure, 1908 and other applicable laws, rules, regulations, bye-laws, as the case may be, including any statutory amendment, modifications or re-enactment thereof, from time to time. In particular, whenever reference is made to the tribunal in the scheme, the reference if the context so permits, would include, if appropriate, reference to the National Company Law Tribunal or such other forum or authority, as the case may be vested with any of the powers of the Tribunal under Sections 230 to 232 of the Companies Act, 2013.

Unless otherwise expressly provided the provisions and clauses of chapter I shall be applicable on the entire scheme.

PART II

DEMERGER OF ACQUIRED BUSINESS OF EHPL AND VESTING OF ACQUIRED BUSINESSWITH AND INTO AHL

CAPITAL STRUCTURE

1. **Capital Structure :**

The authorized, issued, subscribed and paid-up share capital of EHPL and AHL are as under:

For, Aprica Healthcare Limited

Authorized Signatory

1.1. The Share Capital of the Demerged Company (EHPL) as per the Audited Financial Statement dated March 31, 2021 is as under:

Authorized Share Capital	Amount (INR)
50,00,000Equity Shares of Rs. 10/- each	5,00,00,000/-
Total	**5,00,00,000/-**
Issued, Subscribed and Paid up Share Capital	
43,33,331 Equity Shares of Rs. 10/- each	4,33,33,310/-
Total	**4,33,33,310/-**

The authorized, issued, subscribed and paid-up share capital of Demerged Company (EHPL) is the same as above as on the date of Board meeting sanctioning the Scheme.

1.2. The Share Capital of the Resulting Company (AHL) as per the Audited Financial Statement dated March 31, 2021 is as under:

Authorized Share Capital	Amount (INR)
78,20,000 Equity Shares of Rs. 10/- each	7,82,00,000/-
Total	**7,82,00,000/-**
Issued, Subscribed and Paid up Share Capital	
73,45,361 Equity Shares of Rs. 10/- each	7,34,53,610/-
Total	**7,34,53,610/-**

The authorized, issued, subscribed and paid-up share capital of Resulting Company (AHL) is the same as above as on the date of Board meeting sanctioning the Scheme.

DEMERGER AND VESTING OF ACQUIRED BUSINESS

2. Upon the coming into effect of this Scheme and with effect from the Appointed Date and subject to the provisions of this Scheme in relation to the mode of transfer and vesting, the Acquired Businessshall, without any further act, instrument, deed, matter or thing, be demerged from the Demerged Company and transferred to and vested with and into the Resulting Company on a going concern basis, in the manner described hereunder:

For Apollo Healthcare ... Ltd.

Authorized Signatory

2.1 In respect of such of the assets of the Acquired Businessas are movable in nature including any rights under decree or order of any court in India in relation to that assets, the same shall stand transferred by the Demerged Company upon coming into effect of this Scheme pursuant to the provisions of section 230 to 232 of the Act without requiring any deed or instrument of conveyance for transfer of the same, and shall become the property and integral part of the Resulting Company as an integral part of the Acquired Business.

2.2 In respect of assets other than those dealt with in clause 2.1 above, including but not limited to sundry debtors, actionable claims, earnest monies, receivables, bills, credits, loans, advances and deposits, if any, whether recoverable in cash or in kind or for value to be received, bank balances, etc. the same shall stand transferred to and vested in the Resulting Company without any notice or other intimation to any person in pursuance of the provisions of sections 230 to 232 read with other relevant provisions of the Act to the end and intent that the right of the Demerged Company to recover or realize the same stands transferred to the Resulting Company. The Resulting Company shall, at its sole discretion but without being obliged, give notice in such form as it may deem fit and proper, to such person, as the case may be, that the said debt, receivable, bill, credit, loan, advance or deposit stands transferred to and vested in the Resulting Company and that appropriate modification should be made in their respective books/records to reflect the aforesaid changes.

2.3 For the avoidance of doubt and without prejudice to the generality of the foregoing, it is clarified that upon the coming into effect of this Scheme, all permits, licenses, permissions, right of way, approvals, clearances, consents, benefits, registrations, entitlements, credits, certificates, awards, sanctions, allotments, quotas, no objection certificates, exemptions, concessions, issued to or granted to or executed in favor of the Demerged Company, and the rights and benefits under the same, in so far as they relate to the Acquired Businessand all quality certifications and approvals, trademarks, trade dress, trade names, service marks, copy rights, domain names, designs, trade secrets, research and studies, technical knowhow and other intellectual properties and all other interests relating to the goods or services being dealt with by the Acquired Business, shall be transferred to and vested in the Resulting Company and the concerned licensors and grantors of such approvals, clearances, permissions, etc., shall endorse, where necessary, and record, in accordance with law, the Resulting Company on such approvals, clearances, permissions so as to empower and facilitate the approval and

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vesting of the Acquired Businessof the Demerged Company in the Resulting Company and continuation of operations pertaining to the Acquired Businessof the Demerged Company in the Resulting Company without hindrance and that such approvals, clearances and permissions shall remain in full force and effect in favor of or against the Resulting Company, as the case may be, and may be enforced as fully and effectually as if, instead of the Demerged Company, the Resulting Company had been a party or beneficiary or obligee thereto.

2.4 In so far as various incentives, exemptions, GST benefits, income tax holiday/benefit/losses/unabsorbed depreciation and other benefits or exemptions or privileges enjoyed, granted by any Government body, local authority or by any other person, or availed of by the Demerged Company are concerned, the same shall, without any further act or deed, in so far as they relate to the Acquired Business, vest with and be available to the Resulting Company on the same terms and conditions.

2.5 All assets, estate, rights, title, interest and authorities acquired by the Demerged Company after the Appointed Date and prior to the Effective Date for operation of the Acquired Businessshall also stand transferred to and vested in the Resulting Company upon coming into effect of this Scheme.

2.6 Upon the coming into effect of this Scheme, all debts (whether secured or unsecured), borrowings including loans and borrowings from banks and/or financial institutions (to the extent of the said loans/borrowings that may be allocated/demarcated by the concerned banks and/or financial institutions to be transferred to the Resulting Company), obligations, duties and liabilities (including contingent liabilities) of the Demerged Company relating to the Acquired Businessshall without any further act, instrument or deed be and stand transferred to the Resulting Company and shall thereupon become the debts, borrowings, obligations, duties and liabilities of the Resulting Company which it undertakes to meet, discharge and satisfy to the exclusion of the Demerged Company and to keep the Demerged Company indemnified at all times from and against all such debts, duties, obligations and liabilities and from and against all actions, demands and proceedings in respect thereto. It shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such debts, obligations, duties and liabilities have arisen in order to give effect to the provisions of this clause.

2.7 Where any of the liabilities and obligations of the Demerged Company relating to Acquired Business Division as on the Appointed Date

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deemed to be transferred to the Resulting Company, have been discharged by the Demerged Company after the Appointed Date and prior to the Effective Date, such discharge shall be deemed to have been for and on account of the Resulting Company and all liabilities and obligations incurred by the Demerged Company for the operations of the Acquired Businessafter the Appointed Date and prior to the Effective Date shall be deemed to have been incurred for and on behalf of the Resulting Company and to the extent of their outstanding on the Effective Date, shall also without any further act or deed be and stand transferred to the Resulting Company and shall become the liabilities and obligations of the Resulting Company which shall meet, discharge and satisfy the same.

2.8 Any claims, liabilities or demands arising on account of the Acquired Business which relates to the period prior to the Appointed Date but arises at any time after the Effective Date shall be entirely borne by the Resulting Company. In the event that such liability is incurred by or such claim or demand is made upon the Demerged Company, then the Resulting Company shall indemnify the Demerged Company for any payments made in relation to the same.

2.9 In so far as the assets of the Acquired Businessare concerned, the security, existing charges and mortgages, over such assets, to the extent they relate to any loans or borrowings of the Remaining Business of the Demerged Company, shall, without any further act, instrument or deed be released and discharged from the same and shall no longer be available as security in relation to those liabilities of the Demerged Company which are not transferred to the Resulting Company.

2.10 In so far as the assets of the Remaining Business of the Demerged Company are concerned, the security existing charges and mortgages over such assets, to the extent they relate to any loans or borrowings of the Acquired Business (as that may be allocated/demarcated by the concerned banks and/or financial institutions to be transferred to the Resulting Company) shall, without any further act, instrument or deed be released and discharged from such security. The absence of any formal amendment which may be required by a bank and/or financial institution in order to affect such release shall not affect the operation of this clause.

2.11 In so far as the existing security in respect of the loans of the Demerged Company and other liabilities relating to the Remaining Business of the Demerged Company are concerned, such security shall, without any further

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act, instrument or deed be continued with the Demerged Company only on the assets remaining with the Demerged Company.

2.12 Without any prejudice to the provisions of the foregoing clauses, the Demerged Company and the Resulting Company shall enter into and execute such other deeds, instruments, documents and/or writings and/or do all acts and deeds as may be required, including the filing of necessary particulars and/or modification(s) of charge, with the Registrar of Companies, at Ahmedabad to give formal effect to the provisions of this clause and foregoing clauses, if required.

2.13 Upon the coming into effect of this Scheme, the Resulting Company alone shall be liable to perform all obligations in respect of the liabilities being transferred under this Scheme and the Demerged Company shall not have any obligations in respect of the same.

2.14 Upon the coming into effect of this Scheme, the Demerged Company alone shall be liable to perform all obligations in respect of all debts, liabilities, duties and obligations pertaining to the Remaining Business and the Resulting Company shall not have any obligations in respect of the Remaining Business.

2.15 Subject to the necessary consents being obtained, if required, in accordance with the terms of this Scheme, the provisions of the foregoing clauses shall operate, notwithstanding anything to the contrary contained in any instrument, deed or writing or the terms of sanction or issue of any security document all of which instruments, deeds or writings shall stand modified and/or superseded by the foregoing provisions.

2.16 All taxes (including but not limited to advance tax, tax deducted at source, any tax credits, securities transaction tax, taxes withheld/paid in a foreign country, value added tax, sales tax, excise service tax, GST, etc.) payable by or refundable in relation to the Acquired Business of Demerged Company, including all or any refunds or claims shall be treated as the tax liability or refunds/claims, etc., as the case may be, of the Resulting Company, and any tax incentives, advantages, privileges, exemptions, benefits, credits, holidays, remissions, reductions, etc., as would have been available in relation Acquired Business of Demerged Company, shall upon the Scheme being effective, be available to the Resulting Company.

2.17 Upon the Scheme being effective, the Resulting Company shall be entitled to claim refunds or credits, including input tax credit, with respect to taxes paid by, for, or on behalf of, in relation to Acquired Business the Demerged

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Company, under applicable laws, including income tax (including tax losses/unabsorbed depreciation), sales tax, value added tax, service tax, GST, CENVAT or any other tax, whether or not arising due to any inter se transaction, even if the prescribed time limits for claiming such refunds or credits have lapsed.

2.18 Upon the coming into effect of the Scheme, all tax compliances under any tax laws as well as statutory compliances under labour laws by the Demerged Company in relation to Acquired Businesson or after Appointed Date shall be deemed to be made by the Resulting Company.

2.19 Upon the Scheme being effective, any advance tax, self-assessment tax, and/or TDS credit available or vested with the Demerged Company in relation to Acquired Business, including any taxes paid and taxes deducted at source and deposited by the Resulting Company on inter se transactions during the period between the Appointed Date and the Effective Date shall be treated as advance tax paid by the Resulting Company and shall be available to the Resulting Company for set-off against its liability under the Income-tax Act, 1961 and any excess tax so paid shall be eligible for refund together with interest. Any TDS certificates issued by the Resulting Company to, or for the benefit of, the Demerged Company in relation to Acquired Businessunder the Income-tax Act, 1961 with respect to the inter se transactions would be available to the Resulting Company to seek refund of from the tax authorities in compliance with law. Further, TDS deposited, TDS certificates issued or TDS returns filed by the Demerged Company in relation to Acquired Businesson transactions other than inter se transactions during the period between the Appointed Date and the Effective Date shall continue to hold good as if such TDS amounts were deposited, TDS certificates were issued and TDS returns were filed by the Resulting Company. Any TDS deducted by, or on behalf of, the Demerged Company in relation to Acquired Businesson inter se transactions will be treated as advance tax deposited by the Resulting Company.

2.20 The Resulting Company is also expressly permitted to claim refunds, credits, including restoration of input GST credit, tax deduction in respect of nullifying of any transaction between the Acquired BusinessofDemerged Company and the Resulting Company.

2.21 Upon the Scheme being effective, the Resulting Company and the Demerged Company are expressly permitted to revise its financial accounts, income tax returns, withholding tax returns, GST returns (including annual returns), returns and filings under labour laws and any other statutory returns and

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filings under the applicable laws for any relevant year for this purpose, notwithstanding that the period of filing/revising such return may have lapsed.

3 BUSINESS AND PROPERTY IN TRUST AND CONDUCT OF THE ACQUIRED BUSINESSFOR THE RESULTING COMPANY

With effect from the Appointed Date and up to and including the Effective Date:

3.1 The Demerged Company shall be carrying on and be deemed to have been carrying on all business and activities relating to the Acquired Business and shall hold and stand possessed of and shall be deemed to hold and stand possessed of all assets, rights, title, interest, authorities, contracts, investments and strategic decisions of the Acquired Businessfor and on account of, and in trust for the Resulting Company;

3.2 all income or profits accruing or arising to the Demerged Company, or all costs, charges, expenses or losses/unabsorbed depreciation arising or incurred by it (including the effect of taxes, if any, thereon), relating to the Acquired Businessshall, for all purposes, be treated as profits, income, costs, charges, expenses, taxes or losses/unabsorbed depreciation, as the case may be, of the Resulting Company;

3.3 the Demerged Company undertakes that it will preserve and carry on the business of the Acquired Business with diligence and utmost business prudence and agrees that it will not, without prior written consent of the Resulting Company, alienate, charge, mortgage or encumber or otherwise deal with or dispose of the Acquired Business or any part thereof or recruit new employees (in each case except in the ordinary course of business) or conclude settlements with union or employees without the concurrence of the Resulting Company or undertake substantial expansion or change the general character or nature of the business of the Acquired Business; and

3.4 the Demerged Company and/or the Resulting Company shall be entitled, pending sanction of the Scheme, to apply to the Central/State Government(s), regulatory/local/administrative bodies and all other agencies, departments and authorities concerned as are necessary under any law for such consents, approvals and sanctions which the Resulting Company may require to carry on the business of the Acquired Business.

NOTARY YOGENDRA S. RAJPUT Reg. No 539/06

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4. LEGAL PROCEEDINGS

4.1 Upon the coming into effect of this Scheme, all legal or other proceedings (including before any statutory or quasi-judicial authority or tribunal) by or against the Demerged Company, under any statute, whether pending on the Appointed Date, or which may be instituted any time in the future and in each case relating to the Acquired Businessshall be continued and enforced by or against the Resulting Company after the Effective Date. In the event that the legal proceedings referred to herein require the Demerged Company and the Resulting Company to be jointly treated as parties thereto, the Resulting Company shall be added as a party to such proceedings and shall prosecute and defend such proceedings in co-operation with the Demerged Company. In the event of any difference or difficulty in determining as to whether any specific legal or other proceedings relate to the Acquired Businessor not, a decision jointly taken by the Board of Directors of the Demerged Company and the Resulting Company in this regard, shall be conclusive evidence of the matter.

4.2 If proceedings are taken against the Demerged Company in respect of the matters referred to in clause 4.1 above, it shall defend the same in accordance with the advice of the Resulting Company and at the cost of the Resulting Company, and the latter shall reimburse and indemnify the Demerged Company against all the liabilities and obligations incurred by the Demerged Company in respect thereof.

4.3 The Resulting Company undertakes to have all legal and other proceedings initiated by or against the Demerged Company in respect of the matters referred to in clause 4.1 above transferred into its name and to have the same continued, prosecuted and enforced by or against the Resulting Company to the exclusion of the Demerged Company.

5. CONTRACTS, DEEDS, ETC.

5.1 Upon the coming into effect of this Scheme and subject to the provisions of this Scheme, all contracts, deeds, bonds, agreements, schemes, arrangements and other instruments of whatsoever nature in relation to the Acquired Businessto which the Demerged Company is a party or to the benefit of which the Demerged Company may be eligible, and which are subsisting or having effect immediately before the Effective Date, shall be in full force and effect by or against or in favour of the Resulting Company, as the case may be, and may be enforced as fully and effectually as if, instead of the Demerged

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Company, the Resulting Company had been a party or beneficiary or obligee thereto.

5.2 Notwithstanding the fact that vesting of the Acquired Businessoccurs by virtue of the Scheme itself, the Resulting Company may, at any time after the coming into effect of this Scheme, in accordance with the provisions hereof, if so required, under any law or otherwise, execute deeds (including deeds of adherence), confirmations or other writings or tripartite arrangements with any party to any contract or arrangement to which the Demerged Company is a party or any writings as may be necessary to be executed in order to give formal effect to the above provisions. The Demerged Company will, if necessary, also be a party to the above. The Resulting Company shall, under the provisions of this Scheme, be deemed to be authorized to execute any such writings on behalf of the Demerged Company and to carry out or perform all such formalities or compliance referred to above on the part of the Demerged Company to be carried out or performed.

6 SAVING OF CONCLUDED TRANSACTIONS

The transfer and vesting of the assets, liabilities and obligations of the Acquired Business under Clause 2hereof and the continuance of the proceedings by or against the Resulting Company under clause 4 hereof shall not affect any transactions or proceedings already completed by the Demerged Company on and after the Appointed Date, to the end and intent that the Resulting Company accepts and adopts all acts, deeds and things done and executed by and/or on behalf of the Demerged Company as acts, deeds and things done and executed by and on behalf of the Resulting Company.

7. EMPLOYEES OF THE ACQUIRED BUSINESS

Upon the coming into effect of this Scheme, all the employees relating to the Acquired Businessthat were employed by the Demerged Company, immediately before Effective Date, shall become employees of the Resulting Company without any break or interruption of service and with the benefit of continuity of service on terms and conditions which are not less favorable than the terms and conditions as were applicable to such employees relating to the Acquired Businessof the Demerged Company immediately prior to the demerger of the Acquired Business.

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CONSIDERATION AND ACCOUNTING TREATMENT

8 CONSIDERATION TO THE EQUITY SHAREHOLDERS OF EHPL

8.1 Upon the effectiveness of the Scheme, in consideration of the demerger of Acquired Business of and vesting of EHPL with and into AHL and in terms of the Scheme, AHL shall, without any further application, act, instrument or deed, issue and allot to the equity shareholders of EHPL, (whose names are registered in the Register of Members of EHPL, or his /her/its legal heirs, executors or administrators or, as the case may be, successors), Equity Shares of face value Rs. 10/- (Rupees Ten) each credited as fully paid up of AHL in the ratio of 1 Equity Share of the face value of Rs. 10/- (Rupees Ten) each of AHL for every 2equity shares of Rs. 10/- (Rupees Ten) credited as fully paid-up held by such equity shareholders or their respective legal heirs, executors or administrators or, as the case may be, successors in EHPL before capital reduction.
Provided that shareholders of the EHPL, who holds less than 2 number of equity shares will not be allotted any shares of AHL and fractions shall be disregarded for calculating shares to be allotted.

8.2 The equity shares issued and allotted by the Resulting Company in terms of this Scheme shall rank pari-passu in all respects with the existing equity shares of the Resulting Company.

9. RESTRUCTURE IN THE FORM OF CAPITAL REDUCTION OF THE DEMERGED COMPANY AND RESULTING COMPANY

9.1. As a result of the demerger and the resultant transfer of the Acquired Business to the Resulting Company, the securities premium account i.e. Rs. 60,67,66,332/- of Demerged Company will be reduced to Rs. 79,58,986/- as per Section 66 of the Companies Act, 2013.

As on March 31, 2021 and as on the date of approval of the scheme by board of directors of the Demerged Company, the issued, subscribed and paid up share capital of the Demerged Company is Rs. 4,33,33,310, comprising of 43,33,331 equity shares having face value of Rs. 10 each, fully paid up.

9.3. Consequent to the demerger, the Issued, subscribed and Paid up Equity share Capital of the demerged Company shall be reduced by Rs. 4,32,33,310/-.

9.4. Thus, the Issued, Subscribed and paid up equity Share Capital of EHPL, the Demerged Company, shall be reduced from Rs. 1,33,33,310/- Divided into of

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43,33,331 equity shares of Rs. 10 each to Rs. 1,00,000/- divided into10,000 equity shares of Rs. 10 each. For this purpose, the demerged Company will cancel all existing share certificates and issue fresh share certificates comprising 10,000 equity shares of face value of Rs. 10/- each.

9.5. The above referred utilization of securities premium account of the Demerged Company and Resulting Company being consequential in nature is proposed to be effected as an integral part of the Scheme. The approval of the members and creditors of the Resulting Company to the proposed Scheme shall be deemed to be their approval under the provisions of Section 52 read with Section 66 of the Companies Act, 2013 and all other applicable provisions of the Act and the Demerged Company and Resulting Company shall not be required to undertake any separate proceedings for the same. The order of the Hon'ble NCLT sanctioning the Scheme shall be deemed to be an Order under subsection (3) of the Section 66 of the Companies Act, 2013. In view of the same, the Demerged Company and Resulting Company shall not be required to separately comply with Section 52 read with Section 66 of the Companies Act, 2013 or any other provisions of Companies Act, 1956 or Companies Act, 2013.

10. ACCOUNTING TREATMENT IN THE BOOKS OF THE DEMERGED COMPANY

The Demerged Company shall de-recognize from its books, the book value of assets, liabilities and reserve and surplus pertaining to Acquired Business, transferred to the Resulting Company including the rights, interests and obligations of the Demerged Company in such assets, liabilities and reserves and surplus under the Scheme.

11. ACCOUNTING TREATMENT IN THE BOOKS OF THE RESULTING COMPANY

The Resulting Company shall account for the transfer and vesting of the Acquired Business in its books of account as per the "Pooling of Interest Method" prescribed under Indian Accounting Standard 103 - "Business Combinations" notified under Section 133 of the Companies Act, 2013 read with relevant rules issued thereunder and other applicable accounting standards prescribed under the Act.

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12. REMAINING BUSINESS

12.1 The Remaining Business and all the assets, liabilities and obligations pertaining thereto shall continue to belong to and be vested in and be managed by the Demerged Company subject to the provisions of the Scheme.

12.2 All legal or other proceedings by or against the Demerged Company under any statute, whether pending on the Appointed Date or which may be instituted in future whether or not in respect of any matter arising before the Effective Date and relating to the Remaining Business (including those relating to any property, right, power, liability, obligation or duties of the Demerged Company in respect of the Remaining Business) shall be continued and enforced by or against the Demerged Company. The Resulting Company shall in no event be responsible or liable in relation to any such legal or other proceedings by or against the Demerged Company.

12.3 With effect from the Appointed Date and up to and including the Effective Date:

a) The Demerged Company shall be deemed to have been carrying on all business and activities relating to the Remaining Business for and on its own behalf;

b) all profits accruing to the Demerged Company thereon or losses/unabsorbed depreciation arising or incurred by it (including the effect of taxes, if any, thereon) relating to the Remaining Business shall, for all purposes, be treated as the profits, taxes or losses/unabsorbed depreciation, as the case may be, of the Demerged Company; and

c) all employees relatable to the Remaining Business shall continue to be employed by the Demerged Company and the Resulting Company shall not in any event be liable or responsible for any claims whatsoever regarding such employees.

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PART - III

GENERAL TERMS AND CONDITIONS APPLICABLE TO THE SCHEME

1. APPLICATIONS TO NATIONAL COMPANY LAW TRIBUNAL

The Companies shall, with all reasonable dispatch, make petitions to the National Company Law Tribunal sanctioning the scheme pursuant to Sections 230 to 232 read with other applicable provisions of the Companies Act, 2013, as may be applicable, from time to time, for holding/dispensing with the meetings of the shareholders and/or Creditors of all the Companies and obtaining one or more orders sanctioning this scheme and carrying this scheme into effect.

2. MODIFICATIONS/AMENDMENTS TO THE SCHEME

2.1 The Board of Directors of the Companies may assent from time to time, on behalf of all persons concerned including the shareholders, to any modifications or amendments or additions to the Scheme or to any conditions or limitations which either the Board of Directors of the Companies may deem fit or which the NCLT and/or any competent Authority, if any, under the Law may deem fit, to approve of or impose and which the Board of Directors of the Companies may in their discretion, deem fit, and to resolve all doubts or difficulties that may arise in carrying out and implementing this Scheme and to do all acts, instruments, deeds, matters and thing necessary or to review position relating to the satisfaction of the conditions of this Scheme and if necessary, to waive any of those (to the extent permissible under law) for bringing the scheme into effect. In the event of any of the conditions that may be imposed by the NCLT or other authorities, which the Companies may find unacceptable for any reason whatsoever, then the Companies are at liberty to withdraw the Scheme. The aforesaid powers of the Companies may be exercised by their respective Board of Directors, or a committee of the concerned Board of Directors, or any director authorized in that behalf by the concerned Board of Directors.

For the purpose of giving effect to the Scheme or to any modifications or amendments thereof, or additions thereto, the delegate(s) of the Demerged and the other Companies may give and hereby authorized to determine and give all such directions as are necessary including directions for settling or removing any question of doubt or difficulty that may arise and such determination or directions, as the case may be, shall be binding on all parties in the same manner as if the same were specifically incorporated in this Scheme.

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2.3 Notwithstanding clause 2.1 and 2.2 above, the Companies (acting through their respective Board of Directors) shall be at liberty to withdraw or modify the Scheme for the reason of any condition or alteration imposed by the NCLT or any other governmental regulatory authority not being acceptable to them.

3. COST, CHARGES AND EXPENSES

All costs, charges, taxes including duties, levies and all other expenses, if any, arising out of/or incurred in securing approvals and sanctions for the Scheme and matters incidental thereto shall be borne and paid by AHL.

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ANNEXURE - B

Schedule A

Details of property(ies) of the Demerged Company transferred to, and vested in, the Resulting Company pursuant to the Scheme

Intangible Assets

Sr. No.	Brand Name
1.	RARICAP
2.	BSF
3.	BSFO
4.	IGEST
5.	LOPIH
6.	IZABOF
7.	AFENAC
8.	MOLFV

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Schedule B

Details of Assets and Liabilities of Acquired Business Division as at Appointed Date

Particulars		Amount (In Rs.)
Equity & Liabilities		
Equity		
(a) Equity Share Capital		4,32,33,310
(b) Other Equity		
Security Premium Account	59,80,07,549	
Profit and Loss Account	-11,91,68,639	47,96,38,910
Non-current Liabilities		
(a) Deferred tax liabilities (net)		
(b) Long-term provisions		
Current Liabilities		
(a) Short-term borrowings		
(b) Trade Payables		
(i) Total outstanding dues of micro enterprises and small enterprises		
(ii) Total outstanding dues of creditors other than micro enterprises and small enterprises		
(c) Other current liabilities		
(d) Short-term provisions		
Total Equity & Liabilities		52,28,72,220
Assets		
Non-current assets		
(a) Property, Plant & Equipment		48,27,23,608
(b) Capital work in progress		
(c) Non-current investments		
(d) Long-term loans and advances		
(e) Other non-current assets		4,01,48,613
Current assets		
(a) Inventories		
(b) Trade receivables		
(c) Cash and bank balances		
(d) Short-term loans and advances		
(e) Other current assets		
Total Assets		52,28,72,220

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